

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 3, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINES 1-2</u>	24CV428722	Maribel Duran Carrillo et al vs Universal Protection Service, LP et al	Demurrer (Line # 1) and Motion to Strike (Line #2) Scroll down to Lines 1-2 for Tentative Ruling.
<u>LINE 3</u>	24CV447321	Joanna Loresto vs Ford Motor Company et al	Motion for Summary Judgment/Adjudication Scroll down to Line 3 for Tentative Ruling.
<u>LINE 4</u>	25CV464940	Katie Nguyen vs BMW of North America, LLC et al	Motion to Compel Deposition and Sanctions Scroll down to Line 4 for Tentative Ruling.
<u>LINE 5</u>	25CV483469	Zaki Jones vs Costco Wholesale Corporation et al	Demurrer Scroll down to Line 5 for Tentative Ruling.
<u>LINE 6</u>	26CV483967	Prasun Maharatna vs Flexton Inc. et al	Motion to Compel Scroll down to Line 6 for Tentative Ruling.
<u>LINE 7</u>	26CV493338	Pavel Rodl vs Sanas.AI	Petition to Compel Arbitration Scroll down to Line 7 for Tentative Ruling.
<u>LINES 8-9</u>	22CV397661	Shirley Long et al vs Barbara Kalman et al	Motion to Enforce Settlement Scroll down to Lines 8-9 for Tentative Ruling.

- 00000 -

9:01 A.M.			
<u>LINES 1-4</u>	19CV360733	Edward Kellar et al vs Central Investments et al	Hearing: Order of Examinations Parties to appear.

- 00000 -

9:00 A.M.

Calendar Lines # 1-2

Case Name Maribel Duran Carrillo et al vs Universal Protection Service, LP et al

Case No. 24CV428722

Demurrer (Line # 1) and Motion to Strike (Line #2)

Before the court are two motions filed by Defendants The Irvine Company and Tesoro Crescent Village (collectively “Defendants”): (1) Demurrer (Line # 1); and (2) Motion to Strike (Line # 2) to Plaintiffs’ Third Amended Complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Court addresses the Demurrer (Line #1) first and then the Motion to Strike (Line # 2).

DEMURRER (LINE # 1)

I. BACKGROUND

This case stems from a fatal shooting that occurred on June 13, 2026, Decedent Erica Pantoja and Marco Carral-Duran (collectively “Decedents”) were shot and killed by Ms. Pantoja’s estranged ex-spouse, Salvador Pantoja. Decedent Erica Pantoja’s six minor children who are plaintiffs in this matter were present at the time of the incident. Plaintiffs seeks damages against Defendants The Irvine Company and Tesoro Crescent Village, and Universal Protection Service, LP.

On December 8, 2025, Plaintiffs filed a Third Amended Complaint (“TAC”) following a prior court order authorized by the Honorable Shella Deen dated November 14, 2025 sustaining Defendants’ demurrer to Plaintiff’s Second Cause of Action (“SAC”) with twenty days leave to amend. Plaintiff alleges new causes of actions following the three prior demurrers. In its TAC, Plaintiff alleges five causes of actions: (1) Negligence (Wrongful Death and Survivor Action); (2) Negligent Infliction of Emotional Distress (Bystander Theory); (3) Negligent Undertaking; (4) Negligent Misrepresentation and Concealment; and (5) Breach of Workplace Safety Duty.

On January 30, 2026, Defendants filed this demurrer (Line #1) and motion to strike (Line #2). The motions are accompanied by a proof of electronic service on Plaintiffs’ counsel on that same day.

On June 26, 2026, an ex parte application to continue the hearing on the demurrer was denied.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on August 21, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the Defendant notice of demurrer and memorandum of points and authorities (totaling 30 pages); Declaration of James C. Truxaw in support of the demurrer and attached Exhibits A- B (totaling 25 pages); Request for Judicial Notice (totaling 125 pages); proofs of services; and the pleadings.

II. PROCEEDURAL REQUIREMENTS

A. MEET AND CONFER

Code of Civil Procedure section 430.41 requires parties to meet and confer prior to filing the demurrer. On January 30, 2026, Defendants’ counsel attempted to email Plaintiffs’ counsel on January 22, 2026 (Declaration of Truxaw ¶ 5; Exhibit B), and attempted to call Plaintiffs’ counsel and left a voice message on January 23 and 26, 2026. (*Id.*, ¶6). Thus, the court finds Defendants complied with Code of Civil Procedure section 430.41 and now considers the demurrer on its merit.